

COMMITTEE ON HEALTH & HUMAN SERVICES
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1235
(Reference to Senate engrossed)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 36-2202, Arizona Revised Statutes, is amended
3 to read:

4 36-2202. Duties of the director; qualifications of medical
5 director

6 A. The director shall:

7 1. Appoint a medical director of the emergency medical services and
8 trauma system.

9 2. Adopt standards and criteria for the denial or granting of
10 certification and recertification of emergency medical care technicians.
11 These standards shall allow the department to certify qualified emergency
12 medical care technicians who have completed statewide standardized
13 training required under section 36-2204, paragraph 1 and a standardized
14 certification test required under section 36-2204, paragraph 2, who hold
15 valid certification with a national certification organization or who have
16 completed training and testing by the United States armed forces at a
17 level comparable to the national standards for emergency medical care
18 technicians. Before the director may consider approving a statewide
19 standardized training or a standardized certification test, or both, each
20 of these must first be recommended by the medical direction commission and
21 the emergency medical services council to ensure that the standardized
22 training content is consistent with national education standards and that
23 the standardized certification test examines comparable material to that
24 examined in the tests of a national certification organization.
25 [BEGINNING ON THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION OR ON
26 APPROVAL FROM THE FEDERAL BUREAU OF INVESTIGATION, A PERSON APPLYING FOR
27 INITIAL CERTIFICATION AS AN EMERGENCY MEDICAL CARE TECHNICIAN PURSUANT TO
28 THE EMERGENCY MEDICAL SERVICES PERSONNEL LICENSURE INTERSTATE COMPACT AND

1 IN COMPLIANCE WITH THE REQUIREMENTS OF SECTION 36-2259 SHALL POSSESS A
2 VALID FINGERPRINT CLEARANCE CARD PURSUANT TO TITLE 41, CHAPTER 12, ARTICLE
3 3.1.]

4 3. Adopt standards and criteria that pertain to the quality of
5 emergency care pursuant to section 36-2204.

6 4. Adopt rules necessary to carry out this chapter. Each rule
7 shall identify all sections and subsections of this chapter under which
8 the rule was formulated.

9 5. Adopt reasonable medical equipment, supply, staffing and safety
10 standards, criteria and procedures to issue a certificate of registration
11 to operate an ambulance.

12 6. Maintain a state system for recertifying emergency medical care
13 technicians, except as otherwise provided by section 36-2202.01, that is
14 independent from any national certification organization recertification
15 process. This system shall allow emergency medical care technicians to
16 choose to be recertified under the state or the national certification
17 organization recertification system subject to subsection H of this
18 section.

19 B. Emergency medical technicians who choose the state
20 recertification process shall recertify in one of the following ways:

21 1. Successfully completing an emergency medical technician
22 refresher course approved by the department.

23 2. Successfully completing an emergency medical technician
24 challenge course approved by the department.

25 3. For emergency medical care technicians who are currently
26 certified at the emergency medical technician level by the department,
27 attesting on a form provided by the department that the applicant holds a
28 valid and current cardiopulmonary resuscitation certification, has and
29 will maintain documented proof of a minimum of twenty-four hours of
30 continuing medical education within the last two years consistent with
31 department rules and has functioned in the capacity of an emergency
32 medical technician for at least two hundred forty hours during the last
33 two years.

34 C. After consultation with the emergency medical services council,
35 the director may authorize pilot programs designed to improve the safety
36 and efficiency of ambulance inspections for governmental or
37 quasi-governmental entities that provide emergency medical services in
38 this state.

39 D. The rules, standards and criteria adopted by the director
40 pursuant to subsection A, paragraphs 2, 3, 4 and 5 of this section shall
41 be adopted in accordance with title 41, chapter 6, except that the
42 director may adopt on an emergency basis pursuant to section 41-1026 rules
43 relating to the regulation of ambulance services in this state necessary
44 to protect the public peace, health and safety in advance of adopting
45 rules, standards and criteria as otherwise provided by this subsection.

1 E. The director may waive the requirement for compliance with a
2 protocol adopted pursuant to section 36-2205 if the director determines
3 that the techniques, drug formularies or training makes the protocol
4 inconsistent with contemporary medical practices.

5 F. The director may suspend a protocol adopted pursuant to
6 section 36-2205 if the director does all of the following:

7 1. Determines that the rule is not in the public's best interest.

8 2. Initiates procedures pursuant to title 41, chapter 6 to repeal
9 the rule.

10 3. Notifies all interested parties in writing of the director's
11 action and the reasons for that action. Parties interested in receiving
12 notification shall submit a written request to the director.

13 G. To be eligible for appointment as the medical director of the
14 emergency medical services and trauma system, the person shall be
15 qualified in emergency medicine and shall be licensed as a physician in
16 one of the states of the United States.

17 H. Applicants for certification shall apply to the director for
18 certification. Emergency medical care technicians shall apply for
19 recertification to the director every two years. The director may extend
20 the expiration date of an emergency medical care technician's certificate
21 for thirty days. The department shall establish a fee for this extension
22 by rule. Emergency medical care technicians shall pass an examination
23 administered by the department as a condition for recertification only if
24 required to do so by the advanced life support base hospital's medical
25 director or the emergency medical care technician's medical director.

26 I. The medical director of the emergency medical services and
27 trauma system is exempt from title 41, chapter 4, articles 5 and 6 and is
28 entitled to receive compensation pursuant to section 38-611, subsection A.

29 J. The standards, criteria and procedures adopted by the director
30 pursuant to subsection A, paragraph 5 of this section shall require that
31 ambulance services:

32 1. Providing interfacility transportation in any certificate of
33 necessity area of this state have one ambulance attendant as defined in
34 section 36-2201, paragraph 6, subdivision (a), (c), (d) or (e) and one
35 ambulance attendant as defined in section 36-2201, paragraph 6,
36 subdivision (a), (b), (c), (d), or (e) staffing an ambulance while
37 transporting a patient. If an ambulance attendant as defined in section
38 36-2201, paragraph 6, subdivision (b) is staffing the ambulance pursuant
39 to this paragraph, that ambulance attendant may exclusively drive the
40 ambulance.

41 2. Serving a rural or wilderness certificate of necessity area with
42 a population of less than ten thousand persons have at least one ambulance
43 attendant as defined in section 36-2201, paragraph 6, subdivision (a),
44 (c), (d) or (e) and one ambulance attendant as defined in section 36-2201,
45 paragraph 6, subdivision (a) or (b) staffing an ambulance while
46 transporting a patient.

1 3. Serving a population of ten thousand persons or more have at
2 least one ambulance attendant as defined in section 36-2201, paragraph 6,
3 subdivision (a) and one ambulance attendant as defined in section 36-2201,
4 paragraph 6, subdivision (a), (c), (d) or (e) staffing an ambulance while
5 transporting a patient.

6 K. If the department determines there is not a qualified
7 administrative medical director, the department shall ensure the provision
8 of administrative medical direction for an emergency medical technician if
9 the emergency medical technician meets all of the following criteria:

10 1. Is employed by a nonprofit or governmental provider employing
11 less than twelve full-time emergency medical technicians.

12 2. Stipulates to the inability to secure a physician who is willing
13 to provide administrative medical direction.

14 3. Stipulates that the provider agency does not provide
15 administrative medical direction for its employees.>>

16 <<Sec. 2. Section 36-2220, Arizona Revised Statutes, is amended to
17 read:

18 36-2220. Records; confidentiality; definition

19 A. Information developed, records kept and data collected by the
20 department or a political subdivision of this state for the purpose of
21 administering or evaluating the Arizona emergency medical services system
22 or for the trauma system are available to the public except:

23 1. Any patient record, including clinical records, prehospital care
24 records, medical reports, laboratory statements and reports, any file,
25 film, record or report or oral statement relating to diagnostic findings,
26 treatment or outcome of patients, whether written or recorded, and any
27 information from which a patient, the patient's family or the patient's
28 health care provider or facility might be identified except records, files
29 and information are available to the patient, the patient's guardian or
30 the patient's agent.

31 2. Information obtained and data collected for purposes of chapter
32 25 or chapter 4, article 5 of this title.

33 B. Unless otherwise provided by law, all medical records developed
34 and kept by a prehospital component of the statewide trauma system and
35 information contained in these records are confidential and may not be
36 released to the public without written authorization by the patient, the
37 patient's guardian or the patient's agent.

38 C. Notwithstanding subsection B of this section, a prehospital
39 incident history report completed and kept by a nonhospital political
40 subdivision of this state is available to the public except for
41 information in that report that is protected from disclosure by the laws
42 of this state or federal law, including confidential patient treatment
43 information.

44 D. Patient records and medical records covered by this section may
45 be obtained pursuant to section 12-2294.01.

1 E. Information, documents and records received by the department or
2 prepared by the department in connection with an investigation that is
3 conducted pursuant to this article and that relates to emergency medical
4 care technicians are confidential and are not subject to public inspection
5 or civil discovery. The results of the investigation and the decision of
6 the department are available to the public after the investigation is
7 completed and the investigation file is closed. [THIS SUBSECTION DOES NOT
8 PREVENT THE DEPARTMENT FROM SUBMITTING INFORMATION IN COMPLIANCE WITH THE
9 EMERGENCY MEDICAL SERVICES PERSONNEL LICENSURE INTERSTATE COMPACT AS
10 REQUIRED BY SECTION 36-2259.]

11 F. For the purposes of this section, "prehospital incident history
12 report" means a record of the prehospital response, nature of the incident
13 and transportation of an emergency medical services patient that is
14 documented on a prehospital incident history report.>>

15 <<Sec. 3. Section 36-2245, Arizona Revised Statutes, is amended to
16 read:

17 36-2245. Investigations; complaints; informal interviews;
18 hearings; stipulations; judicial review; civil
19 penalty; confidentiality

20 A. The department may conduct an investigation into the operation
21 of ambulances and ambulance services.

22 B. Proceedings under this section may be initiated by the
23 department.

24 C. If the department receives a written and signed statement of
25 dissatisfaction or dispute of charges or any matter relating to the
26 regulation of ambulance services, the customer is deemed to have filed an
27 informal complaint against the ambulance service. Within fifteen days ~~[of~~
28 ~~receipt of]~~ [AFTER RECEIVING] the complaint, a designated representative
29 of the department shall inform the ambulance service that an informal
30 complaint has been filed, state the nature of the allegations made,
31 specify the purported rule violation and identify specific records
32 relating to the purported rule violation that the ambulance service shall
33 provide to the department. The ambulance service shall comply with the
34 request for records in a timely manner.

35 D. Within forty-five days ~~[of receipt of]~~ [AFTER RECEIVING] the
36 records, the department shall determine ~~[if]~~ [WHETHER] the complaint is
37 nonsubstantive or substantive.

38 E. If the department determines that a complaint filed pursuant to
39 this section is nonsubstantive, ~~[it]~~ [THE DEPARTMENT] shall render a
40 written decision to all parties within five days ~~[of]~~ [AFTER] that
41 determination. The complainant may make a formal complaint to the
42 department if the complainant disagrees with the department's decision.
43 If the nonsubstantive complaint involves rates and charges, a designated
44 representative of the department shall attempt to resolve the dispute by
45 correspondence or telephone with the ambulance service and the customer.

46 F. If the department determines that a complaint filed pursuant to
47 this section is substantive, the complaint becomes a formal complaint.

1 The department shall inform the ambulance service that the initial
2 investigation was substantive in nature and may warrant action pursuant to
3 this article. The department shall inform the ambulance service of the
4 specific rule violation and shall allow the ambulance service thirty days
5 to answer the complaint in writing.

6 G. The department may issue a written request for an informal
7 interview with the ambulance service if the department believes that the
8 evidence indicates that grounds for action exist. The request shall state
9 the reasons for the interview and shall schedule an [INFORMAL] interview
10 at least ten days [from] [AFTER] the date that the department sends the
11 request for an interview.

12 H. If the department determines that evidence warrants action or if
13 the ambulance service refuses to attend the informal interview, the
14 director shall institute formal proceedings and hold a hearing pursuant to
15 title 41, chapter 6, article 10.

16 I. If the department believes that a lesser disciplinary action is
17 appropriate, the department may enter into a stipulated agreement with the
18 ambulance service. This stipulation may include a civil penalty as
19 provided under subsection J of this section.

20 J. In addition to other disciplinary action provided under this
21 section, the director may impose a civil penalty of not more than [three
22 hundred fifty dollars] [\$350] for each violation of this chapter that
23 constitutes grounds to suspend or revoke a certificate of necessity. This
24 penalty shall not exceed [fifteen thousand dollars] [\$15,000]. Each day
25 that a violation occurs constitutes a separate offense. The director
26 shall deposit, pursuant to sections 35-146 and 35-147, all monies
27 collected under this subsection in the emergency medical services
28 operating fund established [under] [BY] section 36-2218.

29 K. The director may suspend a certificate of necessity without
30 holding a hearing if the director determines that the certificate holder
31 has failed to pay a civil penalty imposed under this section. The director
32 shall reinstate the certificate of necessity when the certificate holder
33 pays the penalty in full.

34 L. Except as provided in section 41-1092.08, subsection H, a final
35 decision of the department pursuant to this section is subject to judicial
36 review pursuant to title 12, chapter 7, article 6.

37 M. Information, documents and records received by the department or
38 prepared by the department in connection with an investigation that is
39 conducted pursuant to this article and that relates to emergency medical
40 care technicians are confidential and are not subject to public inspection
41 or civil discovery. When the investigation has been completed and the
42 investigation file has been closed, the results of the investigation and
43 the decision of the department shall be available to the public. [THIS
44 SUBSECTION DOES NOT PREVENT THE DEPARTMENT FROM SUBMITTING INFORMATION IN
45 COMPLIANCE WITH THE EMERGENCY MEDICAL SERVICES PERSONNEL LICENSURE
46 INTERSTATE COMPACT AS REQUIRED BY SECTION 36-2259.]>>

1 Sec. 4. Title 36, chapter 21.1, Arizona Revised Statutes, is
2 amended by adding article 2.1, to read:

3 ARTICLE 2.1 EMERGENCY MEDICAL SERVICES PERSONNEL
4 LICENSURE INTERSTATE COMPACT

5 36-2259. Emergency medical services licensure interstate
6 compact

7 SECTION 1. PURPOSE

8 THE PURPOSE OF THIS COMPACT IS TO PROTECT THE PUBLIC THROUGH
9 VERIFICATION OF COMPETENCY AND TO ENSURE ACCOUNTABILITY FOR PATIENT
10 CARE-RELATED ACTIVITIES OF ALL STATES' LICENSED EMERGENCY MEDICAL SERVICES
11 (EMS) PERSONNEL, SUCH AS EMERGENCY MEDICAL TECHNICIANS (EMTs), ADVANCED
12 EMERGENCY MEDICAL TECHNICIANS (AEMTs) AND PARAMEDICS. THIS COMPACT IS
13 INTENDED TO FACILITATE THE DAY-TO-DAY MOVEMENT OF EMS PERSONNEL ACROSS
14 STATE BOUNDARIES IN THE PERFORMANCE OF THEIR EMS DUTIES AS ASSIGNED BY AN
15 APPROPRIATE AUTHORITY AND TO AUTHORIZE STATE EMS OFFICES TO AFFORD
16 IMMEDIATE LEGAL RECOGNITION TO EMS PERSONNEL WHO ARE LICENSED IN A MEMBER
17 STATE. THIS COMPACT RECOGNIZES THAT STATES HAVE A VESTED INTEREST IN
18 PROTECTING THE PUBLIC'S HEALTH AND SAFETY THROUGH THEIR LICENSING AND
19 REGULATION OF EMS PERSONNEL AND THAT SUCH STATE REGULATION SHARED AMONG
20 THE MEMBER STATES WILL BEST PROTECT THE PUBLIC HEALTH AND SAFETY. THIS
21 COMPACT IS DESIGNED TO ACHIEVE THE FOLLOWING PURPOSES AND OBJECTIVES:

- 22 1. INCREASE PUBLIC ACCESS TO EMS PERSONNEL.
- 23 2. ENHANCE THE STATES' ABILITY TO PROTECT THE PUBLIC'S HEALTH AND
24 SAFETY, ESPECIALLY PATIENT SAFETY.
- 25 3. ENCOURAGE THE COOPERATION OF MEMBER STATES IN THE AREAS OF EMS
26 PERSONNEL LICENSURE AND REGULATION.
- 27 4. SUPPORT THE LICENSING OF MILITARY MEMBERS WHO ARE SEPARATING
28 FROM AN ACTIVE DUTY TOUR AND THE SPOUSES OF THOSE MILITARY MEMBERS.
- 29 5. FACILITATE THE EXCHANGE OF INFORMATION BETWEEN MEMBER STATES
30 REGARDING EMS PERSONNEL LICENSURE, ADVERSE ACTIONS AND SIGNIFICANT
31 INVESTIGATORY INFORMATION.
- 32 6. PROMOTE COMPLIANCE WITH THE LAWS GOVERNING EMS PERSONNEL
33 PRACTICE IN EACH MEMBER STATE.
- 34 7. INVEST ALL MEMBER STATES WITH THE AUTHORITY TO HOLD EMS
35 PERSONNEL ACCOUNTABLE THROUGH THE MUTUAL RECOGNITION OF MEMBER STATE
36 LICENSES.

37 SECTION 2. DEFINITIONS

38 IN THIS COMPACT, UNLESS THE CONTEXT OTHERWISE REQUIRES:

- 39 1. "ADVANCED EMERGENCY MEDICAL TECHNICIAN" OR "AEMT" MEANS AN
40 INDIVIDUAL WHO IS LICENSED WITH COGNITIVE KNOWLEDGE AND A SCOPE OF
41 PRACTICE THAT CORRESPONDS TO THAT LEVEL IN THE NATIONAL EMS EDUCATION
42 STANDARDS AND NATIONAL EMS SCOPE OF PRACTICE MODEL.

- 1 2. "ADVERSE ACTION" MEANS:
- 2 (a) ANY ADMINISTRATIVE, CIVIL, EQUITABLE OR CRIMINAL ACTION ALLOWED
- 3 BY A STATE'S LAWS THAT MAY BE IMPOSED AGAINST LICENSED EMS PERSONNEL BY A
- 4 STATE EMS AUTHORITY OR STATE COURT.
- 5 (b) INCLUDES ACTIONS AGAINST AN INDIVIDUAL'S LICENSE SUCH AS
- 6 REVOCATION, SUSPENSION, PROBATION, A CONSENT AGREEMENT, MONITORING OR
- 7 ANOTHER LIMITATION OR ENCUMBRANCE ON THE INDIVIDUAL'S PRACTICE, A LETTER
- 8 OF REPRIMAND OR ADMONITION, A FINE, A CRIMINAL CONVICTION AND A STATE
- 9 COURT JUDGMENT ENFORCING ADVERSE ACTIONS BY THE STATE EMS AUTHORITY.
- 10 3. "ALTERNATIVE PROGRAM" MEANS A VOLUNTARY, NONDISCIPLINARY
- 11 SUBSTANCE ABUSE RECOVERY PROGRAM THAT IS APPROVED BY A STATE EMS
- 12 AUTHORITY.
- 13 4. "CERTIFICATION" MEANS THE SUCCESSFUL VERIFICATION OF ENTRY-LEVEL
- 14 COGNITIVE AND PSYCHOMOTOR COMPETENCY USING A RELIABLE, VALIDATED AND
- 15 LEGALLY DEFENSIBLE EXAMINATION.
- 16 5. "COMMISSION" MEANS THE NATIONAL ADMINISTRATIVE BODY OF WHICH ALL
- 17 STATES THAT HAVE ENACTED THIS COMPACT ARE MEMBERS.
- 18 6. "EMERGENCY MEDICAL TECHNICIAN" OR "EMT" MEANS AN INDIVIDUAL WHO
- 19 IS LICENSED WITH COGNITIVE KNOWLEDGE AND A SCOPE OF PRACTICE THAT
- 20 CORRESPONDS TO THAT LEVEL IN THE NATIONAL EMS EDUCATION STANDARDS AND
- 21 NATIONAL EMS SCOPE OF PRACTICE MODEL.
- 22 7. "HOME STATE" MEANS A MEMBER STATE WHERE AN INDIVIDUAL IS
- 23 LICENSED TO PRACTICE EMERGENCY MEDICAL SERVICES.
- 24 8. "LICENSE" MEANS THE AUTHORIZATION BY A STATE FOR AN INDIVIDUAL
- 25 TO PRACTICE AS AN EMT, AEMT OR PARAMEDIC OR AT A LEVEL IN BETWEEN EMT AND
- 26 PARAMEDIC.
- 27 9. "MEDICAL DIRECTOR" MEANS A PHYSICIAN WHO IS LICENSED IN A MEMBER
- 28 STATE AND WHO IS ACCOUNTABLE FOR THE CARE DELIVERED BY EMS PERSONNEL.
- 29 10. "MEMBER STATE" MEANS A STATE THAT HAS ENACTED THIS COMPACT.
- 30 11. "PARAMEDIC" MEANS AN INDIVIDUAL WHO IS LICENSED WITH COGNITIVE
- 31 KNOWLEDGE AND A SCOPE OF PRACTICE THAT CORRESPONDS TO THAT LEVEL IN THE
- 32 NATIONAL EMS EDUCATION STANDARDS AND NATIONAL EMS SCOPE OF PRACTICE MODEL.
- 33 12. "PRIVILEGE TO PRACTICE" MEANS AN INDIVIDUAL'S AUTHORITY TO
- 34 DELIVER EMERGENCY MEDICAL SERVICES IN REMOTE STATES AS AUTHORIZED UNDER
- 35 THIS COMPACT.
- 36 13. "REMOTE STATE" MEANS A MEMBER STATE IN WHICH AN INDIVIDUAL IS
- 37 NOT LICENSED.
- 38 14. "RESTRICTED" MEANS THE OUTCOME OF AN ADVERSE ACTION THAT LIMITS
- 39 A LICENSE OR THE PRIVILEGE TO PRACTICE.
- 40 15. "RULE" MEANS A WRITTEN STATEMENT OF THE COMMISSION THAT IS
- 41 PROMULGATED PURSUANT TO SECTION 12 OF THIS COMPACT AND THAT:
- 42 (a) IS OF GENERAL APPLICABILITY.
- 43 (b) IMPLEMENTS, INTERPRETS OR PRESCRIBES A POLICY OR PROVISION OF
- 44 THIS COMPACT.
- 45 (c) IS AN ORGANIZATIONAL, PROCEDURAL OR PRACTICE REQUIREMENT OF THE
- 46 COMMISSION AND HAS THE FORCE AND EFFECT OF STATUTORY LAW IN A MEMBER
- 47 STATE.

1 (d) INCLUDES THE AMENDMENT, REPEAL OR SUSPENSION OF AN EXISTING
2 RULE.

3 16. "SCOPE OF PRACTICE" MEANS DEFINED PARAMETERS OF VARIOUS DUTIES
4 OR SERVICES THAT MAY BE PROVIDED BY AN INDIVIDUAL WITH SPECIFIC
5 CREDENTIALS AND THAT, WHETHER REGULATED BY RULE, STATUTE OR COURT
6 DECISION, TEND TO REPRESENT THE LIMITS OF SERVICES THE INDIVIDUAL MAY
7 PERFORM.

8 17. "SIGNIFICANT INVESTIGATORY INFORMATION" MEANS EITHER:

9 (a) INVESTIGATIVE INFORMATION THAT A STATE EMS AUTHORITY, AFTER A
10 PRELIMINARY INQUIRY THAT INCLUDES NOTIFICATION AND AN OPPORTUNITY TO
11 RESPOND IF REQUIRED BY STATE LAW, HAS REASON TO BELIEVE, IF PROVED TRUE,
12 WOULD RESULT IN THE IMPOSITION OF AN ADVERSE ACTION ON A LICENSE OR
13 PRIVILEGE TO PRACTICE.

14 (b) INVESTIGATIVE INFORMATION THAT INDICATES THAT AN INDIVIDUAL
15 REPRESENTS AN IMMEDIATE THREAT TO PUBLIC HEALTH AND SAFETY REGARDLESS OF
16 WHETHER THE INDIVIDUAL HAS BEEN NOTIFIED AND HAD AN OPPORTUNITY TO
17 RESPOND.

18 18. "STATE" MEANS ANY STATE, COMMONWEALTH, DISTRICT OR TERRITORY OF
19 THE UNITED STATES.

20 19. "STATE EMS AUTHORITY" MEANS THE BOARD, OFFICE OR OTHER AGENCY
21 WITH THE LEGISLATIVE MANDATE TO LICENSE EMS PERSONNEL.

22 SECTION 3. HOME STATE LICENSURE

23 A. ANY MEMBER STATE IN WHICH AN INDIVIDUAL HOLDS A CURRENT LICENSE
24 IS DEEMED A HOME STATE FOR THE PURPOSES OF THIS COMPACT.

25 B. ANY MEMBER STATE MAY REQUIRE AN INDIVIDUAL TO OBTAIN AND RETAIN
26 A LICENSE TO BE AUTHORIZED TO PRACTICE IN THE MEMBER STATE UNDER
27 CIRCUMSTANCES NOT AUTHORIZED BY THE PRIVILEGE TO PRACTICE UNDER THE TERMS
28 OF THIS COMPACT.

29 C. A HOME STATE'S ISSUANCE OF A LICENSE AUTHORIZES AN INDIVIDUAL TO
30 PRACTICE IN A REMOTE STATE UNDER THE PRIVILEGE TO PRACTICE ONLY IF THE
31 HOME STATE MEETS ALL OF THE FOLLOWING:

32 1. CURRENTLY REQUIRES THE USE OF THE NATIONAL REGISTRY OF EMERGENCY
33 MEDICAL TECHNICIANS (NREMT) EXAMINATION AS A CONDITION OF ISSUING INITIAL
34 LICENSES AT THE EMT AND PARAMEDIC LEVELS.

35 2. HAS A MECHANISM IN PLACE FOR RECEIVING AND INVESTIGATING
36 COMPLAINTS ABOUT INDIVIDUALS.

37 3. NOTIFIES THE COMMISSION, IN COMPLIANCE WITH THE TERMS PRESCRIBED
38 IN THIS COMPACT, OF ANY ADVERSE ACTION OR SIGNIFICANT INVESTIGATORY
39 INFORMATION REGARDING AN INDIVIDUAL.

40 4. NOT LATER THAN FIVE YEARS AFTER ACTIVATION OF THIS COMPACT,
41 REQUIRES A CRIMINAL BACKGROUND CHECK OF ALL APPLICANTS FOR INITIAL
42 LICENSURE, INCLUDING THE USE OF THE RESULTS OF FINGERPRINT OR OTHER
43 BIOMETRIC DATA CHECKS COMPLIANT WITH THE REQUIREMENTS OF THE FEDERAL
44 BUREAU OF INVESTIGATION, WITH THE EXCEPTION OF FEDERAL EMPLOYEES WHO HAVE
45 SUITABILITY DETERMINATION IN ACCORDANCE WITH 5 CODE OF FEDERAL REGULATIONS
46 SECTION 731.202 AND WHO SUBMIT DOCUMENTATION OF SUCH AS PROMULGATED IN THE
47 RULES OF THE COMMISSION.

1 5. COMPLIES WITH THE RULES OF THE COMMISSION.

2 SECTION 4. COMPACT PRIVILEGE TO PRACTICE

3 A. MEMBER STATES SHALL RECOGNIZE THE PRIVILEGE TO PRACTICE OF AN
4 INDIVIDUAL WHO IS LICENSED IN ANOTHER MEMBER STATE THAT IS IN CONFORMANCE
5 WITH SECTION 3 OF THIS COMPACT.

6 B. TO EXERCISE THE PRIVILEGE TO PRACTICE UNDER THE TERMS AND
7 PROVISIONS OF THIS COMPACT, AN INDIVIDUAL MUST MEET ALL OF THE FOLLOWING:

8 1. BE AT LEAST EIGHTEEN YEARS OF AGE.

9 2. POSSESS A CURRENT UNRESTRICTED LICENSE IN A MEMBER STATE AS AN
10 EMT, AEMT, PARAMEDIC OR STATE RECOGNIZED AND LICENSED LEVEL WITH A SCOPE
11 OF PRACTICE AND AUTHORITY BETWEEN EMT AND PARAMEDIC.

12 3. PRACTICE UNDER THE SUPERVISION OF A MEDICAL DIRECTOR.

13 C. AN INDIVIDUAL PROVIDING PATIENT CARE IN A REMOTE STATE UNDER THE
14 PRIVILEGE TO PRACTICE SHALL FUNCTION WITHIN THE SCOPE OF PRACTICE
15 AUTHORIZED BY THE HOME STATE UNLESS AND UNTIL MODIFIED BY AN APPROPRIATE
16 AUTHORITY IN THE REMOTE STATE AS MAY BE DEFINED IN THE RULES OF THE
17 COMMISSION.

18 D. EXCEPT AS PROVIDED IN SUBSECTION C OF THIS SECTION, AN
19 INDIVIDUAL PRACTICING IN A REMOTE STATE IS SUBJECT TO THE REMOTE STATE'S
20 AUTHORITY AND LAWS. A REMOTE STATE, IN ACCORDANCE WITH DUE PROCESS AND
21 THAT STATE'S LAWS, MAY RESTRICT, SUSPEND OR REVOKE AN INDIVIDUAL'S
22 PRIVILEGE TO PRACTICE IN THE REMOTE STATE AND MAY TAKE ANY OTHER NECESSARY
23 ACTIONS TO PROTECT THE HEALTH AND SAFETY OF ITS CITIZENS. IF A REMOTE
24 STATE TAKES ACTION, IT SHALL PROMPTLY NOTIFY THE HOME STATE AND THE
25 COMMISSION.

26 E. IF AN INDIVIDUAL'S LICENSE IN ANY HOME STATE IS RESTRICTED OR
27 SUSPENDED, THE INDIVIDUAL IS NOT ELIGIBLE TO PRACTICE IN A REMOTE STATE
28 UNDER THE PRIVILEGE TO PRACTICE UNTIL THE INDIVIDUAL'S HOME STATE LICENSE
29 IS RESTORED.

30 F. IF AN INDIVIDUAL'S PRIVILEGE TO PRACTICE IN ANY REMOTE STATE IS
31 RESTRICTED, SUSPENDED OR REVOKED, THE INDIVIDUAL IS NOT ELIGIBLE TO
32 PRACTICE IN ANY REMOTE STATE UNTIL THE INDIVIDUAL'S PRIVILEGE TO PRACTICE
33 IS RESTORED.

34 SECTION 5. CONDITIONS OF PRACTICE IN A REMOTE STATE

35 AN INDIVIDUAL MAY PRACTICE IN A REMOTE STATE UNDER A PRIVILEGE TO
36 PRACTICE ONLY IN THE PERFORMANCE OF THE INDIVIDUAL'S EMS DUTIES AS
37 ASSIGNED BY AN APPROPRIATE AUTHORITY, AS DEFINED IN THE RULES OF THE
38 COMMISSION, AND UNDER THE FOLLOWING CIRCUMSTANCES:

39 1. THE INDIVIDUAL ORIGINATES A PATIENT TRANSPORT IN A HOME STATE
40 AND TRANSPORTS THE PATIENT TO A REMOTE STATE.

41 2. THE INDIVIDUAL ORIGINATES IN THE HOME STATE AND ENTERS A REMOTE
42 STATE TO PICK UP A PATIENT AND PROVIDE CARE AND TRANSPORT OF THE PATIENT
43 TO THE HOME STATE.

44 3. THE INDIVIDUAL ENTERS A REMOTE STATE TO PROVIDE PATIENT CARE OR
45 TRANSPORT, OR BOTH, WITHIN THAT REMOTE STATE.

46 4. THE INDIVIDUAL ENTERS A REMOTE STATE TO PICK UP A PATIENT AND
47 PROVIDE CARE AND TRANSPORT TO A THIRD MEMBER STATE.

1 5. OTHER CONDITIONS AS DETERMINED BY RULES PROMULGATED BY THE
2 COMMISSION.

3 SECTION 6. RELATIONSHIP TO EMERGENCY
4 MANAGEMENT ASSISTANCE COMPACT

5 ON THE DECLARATION BY A MEMBER STATE'S GOVERNOR OF A STATE OF
6 EMERGENCY OR DISASTER THAT ACTIVATES THE EMERGENCY MANAGEMENT ASSISTANCE
7 COMPACT (EMAC), ALL RELEVANT TERMS AND PROVISIONS OF EMAC APPLY AND, TO
8 THE EXTENT ANY TERMS OR PROVISIONS OF THIS COMPACT CONFLICT WITH EMAC, THE
9 TERMS OF EMAC SHALL PREVAIL WITH RESPECT TO ANY INDIVIDUAL PRACTICING IN
10 THE REMOTE STATE IN RESPONSE TO THE DECLARATION.

11 SECTION 7. VETERANS AND MILITARY SERVICE MEMBERS
12 SEPARATING FROM ACTIVE DUTY AND THEIR SPOUSES

13 A. MEMBER STATES SHALL CONSIDER A VETERAN, ACTIVE MILITARY SERVICE
14 MEMBER AND MEMBER OF THE NATIONAL GUARD AND RESERVES SEPARATING FROM AN
15 ACTIVE DUTY TOUR, AND THE SPOUSE OF ANY OF THESE, WHO HOLDS A CURRENT
16 VALID AND UNRESTRICTED NREMT CERTIFICATION AT OR ABOVE THE LEVEL OF THE
17 STATE LICENSE BEING SOUGHT AS SATISFYING THE MINIMUM TRAINING AND
18 EXAMINATION REQUIREMENTS FOR SUCH LICENSURE.

19 B. MEMBER STATES SHALL EXPEDITE THE PROCESSING OF LICENSURE
20 APPLICATIONS SUBMITTED BY VETERANS, ACTIVE MILITARY SERVICE MEMBERS AND
21 MEMBERS OF THE NATIONAL GUARD AND RESERVES SEPARATING FROM AN ACTIVE DUTY
22 TOUR, AND THEIR SPOUSES.

23 C. ALL INDIVIDUALS FUNCTIONING WITH A PRIVILEGE TO PRACTICE UNDER
24 THIS SECTION REMAIN SUBJECT TO THE ADVERSE ACTIONS PROVISIONS OF SECTION 8
25 OF THIS COMPACT.

26 SECTION 8. ADVERSE ACTIONS

27 A. A HOME STATE HAS EXCLUSIVE POWER TO IMPOSE ADVERSE ACTION
28 AGAINST AN INDIVIDUAL'S LICENSE ISSUED BY THE HOME STATE.

29 B. IF AN INDIVIDUAL'S LICENSE IN ANY HOME STATE IS RESTRICTED OR
30 SUSPENDED, THE INDIVIDUAL IS NOT ELIGIBLE TO PRACTICE IN A REMOTE STATE
31 UNDER THE PRIVILEGE TO PRACTICE UNTIL THE INDIVIDUAL'S HOME STATE LICENSE
32 IS RESTORED, AND THE FOLLOWING APPLY:

33 1. ALL HOME STATE ADVERSE ACTION ORDERS SHALL INCLUDE A STATEMENT
34 THAT THE INDIVIDUAL'S PRIVILEGE TO PRACTICE IS INACTIVE. THE ORDER MAY
35 ALLOW THE INDIVIDUAL TO PRACTICE IN REMOTE STATES WITH PRIOR WRITTEN
36 AUTHORIZATION FROM BOTH THE HOME STATE EMS AUTHORITY AND THE REMOTE STATE
37 EMS AUTHORITY.

38 2. AN INDIVIDUAL WHO IS CURRENTLY SUBJECT TO ADVERSE ACTION IN THE
39 HOME STATE SHALL NOT PRACTICE IN ANY REMOTE STATE WITHOUT PRIOR WRITTEN
40 AUTHORIZATION FROM BOTH THE HOME STATE EMS AUTHORITY AND THE REMOTE STATE
41 EMS AUTHORITY.

42 C. A MEMBER STATE SHALL REPORT ADVERSE ACTIONS AND ANY OCCURRENCES
43 THAT THE INDIVIDUAL'S PRIVILEGE TO PRACTICE IS RESTRICTED, SUSPENDED OR
44 REVOKED TO THE COMMISSION IN ACCORDANCE WITH THE RULES OF THE COMMISSION.

45 D. A REMOTE STATE MAY TAKE ADVERSE ACTION ON AN INDIVIDUAL'S
46 PRIVILEGE TO PRACTICE WITHIN THAT STATE.

1 E. ANY MEMBER STATE MAY TAKE ADVERSE ACTION AGAINST AN INDIVIDUAL'S
2 PRIVILEGE TO PRACTICE IN THAT STATE BASED ON THE FACTUAL FINDINGS OF
3 ANOTHER MEMBER STATE SO LONG AS EACH STATE FOLLOWS ITS OWN PROCEDURES FOR
4 IMPOSING SUCH ADVERSE ACTION.

5 F. A HOME STATE'S EMS AUTHORITY SHALL INVESTIGATE AND TAKE
6 APPROPRIATE ACTION WITH RESPECT TO REPORTED CONDUCT IN A REMOTE STATE AS
7 IT WOULD IF SUCH CONDUCT HAD OCCURRED WITHIN THE HOME STATE. IN SUCH
8 CASES, THE HOME STATE'S LAW SHALL CONTROL IN DETERMINING THE APPROPRIATE
9 ADVERSE ACTION.

10 G. THIS COMPACT DOES NOT OVERRIDE A MEMBER STATE'S DECISION THAT
11 PARTICIPATION IN AN ALTERNATIVE PROGRAM MAY BE USED IN LIEU OF ADVERSE
12 ACTION AND THAT SUCH PARTICIPATION SHALL REMAIN NONPUBLIC IF REQUIRED BY
13 THE MEMBER STATE'S LAWS. MEMBER STATES SHALL REQUIRE INDIVIDUALS WHO
14 ENTER ANY ALTERNATIVE PROGRAMS TO AGREE NOT TO PRACTICE IN ANY OTHER
15 MEMBER STATE DURING THE TERM OF THE ALTERNATIVE PROGRAM WITHOUT PRIOR
16 AUTHORIZATION FROM THE OTHER MEMBER STATE.

17 SECTION 9. ADDITIONAL POWERS INVESTED IN
18 A MEMBER STATE'S EMS AUTHORITY

19 A MEMBER STATE'S EMS AUTHORITY, IN ADDITION TO ANY OTHER POWERS
20 GRANTED UNDER STATE LAW, IS AUTHORIZED UNDER THIS COMPACT TO:

21 1. ISSUE SUBPOENAS FOR BOTH HEARINGS AND INVESTIGATIONS THAT
22 REQUIRE THE ATTENDANCE AND TESTIMONY OF WITNESSES AND THE PRODUCTION OF
23 EVIDENCE. SUBPOENAS ISSUED BY A MEMBER STATE'S EMS AUTHORITY FOR THE
24 ATTENDANCE AND TESTIMONY OF WITNESSES OR THE PRODUCTION OF EVIDENCE FROM
25 ANOTHER MEMBER STATE, OR BOTH, SHALL BE ENFORCED IN THE REMOTE STATE BY
26 ANY COURT OF COMPETENT JURISDICTION, ACCORDING TO THAT COURT'S PRACTICE
27 AND PROCEDURE IN CONSIDERING SUBPOENAS ISSUED IN ITS OWN PROCEEDINGS. THE
28 ISSUING STATE EMS AUTHORITY SHALL PAY ANY WITNESS FEES, TRAVEL EXPENSES,
29 MILEAGE AND OTHER FEES REQUIRED BY THE SERVICE STATUTES OF THE STATE WHERE
30 THE WITNESSES OR EVIDENCE, OR BOTH, ARE LOCATED.

31 2. ISSUE CEASE AND DESIST ORDERS TO RESTRICT, SUSPEND OR REVOKE AN
32 INDIVIDUAL'S PRIVILEGE TO PRACTICE IN THE MEMBER STATE.

33 SECTION 10. ESTABLISHMENT OF THE INTERSTATE COMMISSION
34 FOR EMS PERSONNEL PRACTICE

35 A. THE COMPACT STATES HEREBY CREATE AND ESTABLISH A JOINT PUBLIC
36 AGENCY KNOWN AS THE INTERSTATE COMMISSION FOR EMS PERSONNEL PRACTICE. THE
37 FOLLOWING APPLY:

38 1. THE COMMISSION IS A BODY POLITIC AND AN INSTRUMENTALITY OF THE
39 COMPACT STATES.

40 2. VENUE IS PROPER AND JUDICIAL PROCEEDINGS BY OR AGAINST THE
41 COMMISSION SHALL BE BROUGHT SOLELY AND EXCLUSIVELY IN A COURT OF COMPETENT
42 JURISDICTION WHERE THE PRINCIPAL OFFICE OF THE COMMISSION IS LOCATED. THE
43 COMMISSION MAY WAIVE VENUE AND JURISDICTIONAL DEFENSES TO THE EXTENT IT
44 ADOPTS OR CONSENTS TO PARTICIPATE IN ALTERNATIVE DISPUTE RESOLUTION
45 PROCEEDINGS.

46 3. THIS COMPACT IS NOT A WAIVER OF SOVEREIGN IMMUNITY.

47 B. MEMBERSHIP, VOTING AND MEETINGS ARE AS FOLLOWS:

1 1. EACH MEMBER STATE SHALL HAVE AND BE LIMITED TO ONE DELEGATE. THE
2 RESPONSIBLE OFFICIAL OF THE STATE EMS AUTHORITY OR THE STATE EMS
3 AUTHORITY'S DESIGNEE SHALL BE THE DELEGATE TO THIS COMPACT FOR EACH MEMBER
4 STATE. ANY DELEGATE MAY BE REMOVED OR SUSPENDED FROM OFFICE AS PROVIDED
5 BY THE LAW OF THE STATE FROM WHICH THE DELEGATE IS APPOINTED. ANY VACANCY
6 OCCURRING IN THE COMMISSION SHALL BE FILLED IN ACCORDANCE WITH THE LAWS OF
7 THE MEMBER STATE IN WHICH THE VACANCY EXISTS. IN THE EVENT THAT MORE THAN
8 ONE BOARD, OFFICE OR OTHER AGENCY WITH THE LEGISLATIVE MANDATE TO LICENSE
9 EMS PERSONNEL AT AND ABOVE THE LEVEL OF EMT EXISTS, THE GOVERNOR OF THAT
10 STATE WILL DETERMINE WHICH ENTITY WILL BE RESPONSIBLE FOR ASSIGNING THE
11 DELEGATE.

12 2. EACH DELEGATE SHALL BE ENTITLED TO ONE VOTE WITH REGARD TO THE
13 PROMULGATION OF RULES AND CREATION OF BYLAWS AND SHALL OTHERWISE HAVE AN
14 OPPORTUNITY TO PARTICIPATE IN THE BUSINESS AND AFFAIRS OF THE COMMISSION.
15 A DELEGATE SHALL VOTE IN PERSON OR BY SUCH OTHER MEANS AS PROVIDED IN THE
16 BYLAWS. THE BYLAWS MAY PROVIDE FOR DELEGATES' PARTICIPATION IN MEETINGS
17 BY TELEPHONE OR OTHER MEANS OF COMMUNICATION.

18 3. THE COMMISSION SHALL MEET AT LEAST ONCE DURING EACH CALENDAR
19 YEAR. ADDITIONAL MEETINGS SHALL BE HELD AS SET FORTH IN THE BYLAWS.

20 4. ALL MEETINGS SHALL BE OPEN TO THE PUBLIC, AND PUBLIC NOTICE OF
21 MEETINGS SHALL BE GIVEN IN THE SAME MANNER AS REQUIRED UNDER THE
22 RULEMAKING PROVISIONS IN SECTION 12 OF THIS COMPACT.

23 5. THE COMMISSION MAY CONVENE IN A CLOSED, NONPUBLIC MEETING IF THE
24 COMMISSION MUST DISCUSS ANY OF THE FOLLOWING:

25 (a) NONCOMPLIANCE OF A MEMBER STATE WITH ITS OBLIGATIONS UNDER THE
26 COMPACT.

27 (b) THE EMPLOYMENT, COMPENSATION, DISCIPLINE OR OTHER PERSONNEL
28 MATTERS, PRACTICES OR PROCEDURES RELATED TO SPECIFIC EMPLOYEES OR OTHER
29 MATTERS RELATED TO THE COMMISSION'S INTERNAL PERSONNEL PRACTICES AND
30 PROCEDURES.

31 (c) THE CURRENT, THREATENED OR REASONABLY ANTICIPATED LITIGATION.

32 (d) THE NEGOTIATION OF CONTRACTS FOR THE PURCHASE OR SALE OF GOODS,
33 SERVICES OR REAL ESTATE.

34 (e) THE ACCUSATION OF ANY PERSON OF A CRIME OR THE FORMAL CENSURE
35 OF ANY PERSON.

36 (f) THE DISCLOSURE OF TRADE SECRETS OR COMMERCIAL OR FINANCIAL
37 INFORMATION THAT IS PRIVILEGED OR CONFIDENTIAL.

38 (g) THE DISCLOSURE OF INFORMATION OF A PERSONAL NATURE WHERE
39 DISCLOSURE WOULD CONSTITUTE A CLEARLY UNWARRANTED INVASION OF PERSONAL
40 PRIVACY.

41 (h) THE DISCLOSURE OF INVESTIGATORY RECORDS COMPILED FOR LAW
42 ENFORCEMENT PURPOSES.

43 (i) THE DISCLOSURE OF INFORMATION RELATED TO ANY INVESTIGATORY
44 REPORTS PREPARED BY OR ON BEHALF OF OR FOR USE OF THE COMMISSION OR
45 ANOTHER COMMITTEE CHARGED WITH RESPONSIBILITY OF INVESTIGATION OR
46 DETERMINATION OF COMPLIANCE ISSUES PURSUANT TO THIS COMPACT.

1 (j) ANY MATTER SPECIFICALLY EXEMPTED FROM DISCLOSURE BY FEDERAL OR
2 MEMBER STATE STATUTE.

3 6. IF A MEETING, OR PORTION OF A MEETING, IS CLOSED PURSUANT TO
4 THIS SUBSECTION, THE COMMISSION'S LEGAL COUNSEL OR DESIGNEE SHALL CERTIFY
5 THAT THE MEETING MAY BE CLOSED AND SHALL REFERENCE EACH RELEVANT EXEMPTING
6 PROVISION. THE COMMISSION SHALL KEEP MINUTES THAT FULLY AND CLEARLY
7 DESCRIBE ALL MATTERS DISCUSSED IN THE CLOSED MEETING AND SHALL PROVIDE A
8 FULL AND ACCURATE SUMMARY OF ACTIONS TAKEN, AND THE REASONS THEREFORE,
9 INCLUDING A DESCRIPTION OF THE VIEWS EXPRESSED. ALL DOCUMENTS CONSIDERED
10 IN CONNECTION WITH AN ACTION SHALL BE IDENTIFIED IN SUCH MINUTES. ALL
11 MINUTES AND DOCUMENTS OF A CLOSED MEETING SHALL REMAIN UNDER SEAL, SUBJECT
12 TO RELEASE BY A MAJORITY VOTE OF THE COMMISSION OR AN ORDER OF A COURT OF
13 COMPETENT JURISDICTION.

14 C. THE COMMISSION, BY A MAJORITY VOTE OF THE DELEGATES, SHALL
15 PRESCRIBE BYLAWS OR RULES, OR BOTH, TO GOVERN ITS CONDUCT AS MAY BE
16 NECESSARY OR APPROPRIATE TO CARRY OUT THE PURPOSES AND EXERCISE THE POWERS
17 OF THIS COMPACT, INCLUDING:

18 1. ESTABLISHING THE FISCAL YEAR OF THE COMMISSION.

19 2. PROVIDING REASONABLE STANDARDS AND PROCEDURES:

20 (a) FOR THE ESTABLISHMENT AND MEETINGS OF OTHER COMMITTEES.

21 (b) GOVERNING ANY GENERAL OR SPECIFIC DELEGATION OF ANY AUTHORITY
22 OR FUNCTION OF THE COMMISSION.

23 3. PROVIDING REASONABLE PROCEDURES FOR CALLING AND CONDUCTING
24 MEETINGS OF THE COMMISSION, ENSURING REASONABLE ADVANCE NOTICE OF ALL
25 MEETINGS AND PROVIDING AN OPPORTUNITY FOR ATTENDANCE OF SUCH MEETINGS BY
26 INTERESTED PARTIES, WITH ENUMERATED EXCEPTIONS DESIGNED TO PROTECT THE
27 PUBLIC'S INTEREST, THE PRIVACY OF INDIVIDUALS AND PROPRIETARY INFORMATION,
28 INCLUDING TRADE SECRETS. THE COMMISSION MAY MEET IN CLOSED SESSION ONLY
29 AFTER A MAJORITY OF THE MEMBERSHIP VOTES TO CLOSE A MEETING IN WHOLE OR IN
30 PART. AS SOON AS PRACTICABLE, THE COMMISSION SHALL MAKE PUBLIC A COPY OF
31 THE VOTE TO CLOSE THE MEETING REVEALING THE VOTE OF EACH MEMBER WITH NO
32 PROXY VOTES ALLOWED.

33 4. ESTABLISHING THE TITLES, DUTIES AND AUTHORITY AND REASONABLE
34 PROCEDURES FOR ELECTING THE OFFICERS OF THE COMMISSION.

35 5. PROVIDING REASONABLE STANDARDS AND PROCEDURES FOR ESTABLISHING
36 THE PERSONNEL POLICIES AND PROGRAMS OF THE COMMISSION. NOTWITHSTANDING ANY
37 CIVIL SERVICE OR OTHER SIMILAR LAWS OF ANY MEMBER STATE, THE BYLAWS SHALL
38 EXCLUSIVELY GOVERN THE PERSONNEL POLICIES AND PROGRAMS OF THE COMMISSION.

39 6. PROMULGATING A CODE OF ETHICS TO ADDRESS PERMISSIBLE AND
40 PROHIBITED ACTIVITIES OF COMMISSION MEMBERS AND EMPLOYEES.

41 7. PROVIDING A MECHANISM FOR WINDING UP THE OPERATIONS OF THE
42 COMMISSION AND THE EQUITABLE DISPOSITION OF ANY SURPLUS MONIES THAT MAY
43 EXIST AFTER THE TERMINATION OF THIS COMPACT AFTER THE PAYMENT OR RESERVING
44 OF ALL OF THE COMMISSION'S DEBTS OR OBLIGATIONS, OR BOTH.

45 8. PUBLISHING THE COMMISSION'S BYLAWS AND FILING A COPY THEREOF,
46 AND A COPY OF ANY AMENDMENT THERETO, WITH THE APPROPRIATE AGENCY OR
47 OFFICER IN EACH MEMBER STATE, IF ANY.

1 9. MAINTAINING THE COMMISSION'S FINANCIAL RECORDS IN ACCORDANCE
2 WITH THE BYLAWS.

3 10. MEETING AND TAKING SUCH ACTIONS AS ARE CONSISTENT WITH THE
4 PROVISIONS OF THIS COMPACT AND THE BYLAWS.

5 D. THE COMMISSION SHALL HAVE THE FOLLOWING POWERS:

6 1. TO PROMULGATE UNIFORM RULES TO FACILITATE AND COORDINATE
7 IMPLEMENTATION AND ADMINISTRATION OF THIS COMPACT. THE RULES SHALL HAVE
8 THE FORCE AND EFFECT OF LAW AND SHALL BE BINDING IN ALL MEMBER STATES.

9 2. TO BRING AND PROSECUTE LEGAL PROCEEDINGS OR ACTIONS IN THE NAME
10 OF THE COMMISSION, PROVIDED THAT THE STANDING OF ANY STATE EMS AUTHORITY
11 OR OTHER REGULATORY BODY RESPONSIBLE FOR EMS PERSONNEL LICENSURE TO SUE OR
12 BE SUED UNDER APPLICABLE LAW SHALL NOT BE AFFECTED.

13 3. TO PURCHASE AND MAINTAIN INSURANCE AND BONDS.

14 4. TO BORROW, ACCEPT OR CONTRACT FOR SERVICES OF PERSONNEL,
15 INCLUDING EMPLOYEES OF A MEMBER STATE.

16 5. TO HIRE EMPLOYEES, ELECT OR APPOINT OFFICERS, FIX COMPENSATION,
17 DEFINE DUTIES, GRANT SUCH INDIVIDUALS APPROPRIATE AUTHORITY TO CARRY OUT
18 THE PURPOSES OF THIS COMPACT, AND TO ESTABLISH THE COMMISSION'S PERSONNEL
19 POLICIES AND PROGRAMS RELATING TO CONFLICTS OF INTEREST, QUALIFICATIONS OF
20 PERSONNEL AND OTHER RELATED PERSONNEL MATTERS.

21 6. TO ACCEPT ANY AND ALL APPROPRIATE DONATIONS AND GRANTS OF
22 MONIES, EQUIPMENT, SUPPLIES, MATERIALS AND SERVICES, AND TO RECEIVE, USE
23 AND DISPOSE OF THE SAME, PROVIDED THAT AT ALL TIMES THE COMMISSION SHALL
24 STRIVE TO AVOID ANY APPEARANCE OF IMPROPRIETY AND CONFLICT OF INTEREST.

25 7. TO LEASE, PURCHASE, ACCEPT APPROPRIATE GIFTS OR DONATIONS OF, OR
26 OTHERWISE TO OWN, HOLD, IMPROVE OR USE, ANY PROPERTY, REAL, PERSONAL OR
27 MIXED, PROVIDED THAT AT ALL TIMES THE COMMISSION SHALL STRIVE TO AVOID ANY
28 APPEARANCE OF IMPROPRIETY.

29 8. TO SELL, CONVEY, MORTGAGE, PLEDGE, LEASE, EXCHANGE, ABANDON OR
30 OTHERWISE DISPOSE OF ANY PROPERTY, REAL, PERSONAL OR MIXED.

31 9. TO ESTABLISH A BUDGET AND MAKE EXPENDITURES.

32 10. TO BORROW MONIES.

33 11. TO APPOINT COMMITTEES, INCLUDING ADVISORY COMMITTEES COMPOSED
34 OF MEMBERS, STATE REGULATORS, STATE LEGISLATORS OR THEIR REPRESENTATIVES,
35 AND CONSUMER REPRESENTATIVES, AND SUCH OTHER INTERESTED PERSONS AS MAY BE
36 DESIGNATED IN THIS COMPACT AND THE BYLAWS.

37 12. TO PROVIDE AND RECEIVE INFORMATION FROM, AND TO COOPERATE WITH,
38 LAW ENFORCEMENT AGENCIES.

39 13. TO ADOPT AND USE AN OFFICIAL SEAL.

40 14. TO PERFORM SUCH OTHER FUNCTIONS AS MAY BE NECESSARY OR
41 APPROPRIATE TO ACHIEVE THE PURPOSES OF THIS COMPACT CONSISTENT WITH THE
42 STATE REGULATION OF EMS PERSONNEL LICENSURE AND PRACTICE.

43 E. FINANCING OF THE COMMISSION IS AS FOLLOWS:

44 1. THE COMMISSION SHALL PAY, OR PROVIDE FOR THE PAYMENT OF, THE
45 REASONABLE EXPENSES OF ITS ESTABLISHMENT, ORGANIZATION AND ONGOING
46 ACTIVITIES.

1 2. THE COMMISSION MAY ACCEPT ANY AND ALL APPROPRIATE REVENUE
2 SOURCES, DONATIONS AND GRANTS OF MONIES, EQUIPMENT, SUPPLIES, MATERIALS
3 AND SERVICES.

4 3. THE COMMISSION MAY LEVY ON AND COLLECT AN ANNUAL ASSESSMENT FROM
5 EACH MEMBER STATE OR IMPOSE FEES ON OTHER PARTIES TO COVER THE COST OF THE
6 OPERATIONS AND ACTIVITIES OF THE COMMISSION AND ITS STAFF, WHICH MUST BE
7 IN A TOTAL AMOUNT SUFFICIENT TO COVER ITS ANNUAL BUDGET AS APPROVED EACH
8 YEAR FOR WHICH REVENUE IS NOT PROVIDED BY OTHER SOURCES. THE AGGREGATE
9 ANNUAL ASSESSMENT AMOUNT SHALL BE ALLOCATED BASED ON A FORMULA TO BE
10 DETERMINED BY THE COMMISSION, WHICH SHALL PROMULGATE A RULE BINDING ON ALL
11 MEMBER STATES.

12 4. THE COMMISSION SHALL NOT INCUR OBLIGATIONS OF ANY KIND BEFORE
13 SECURING THE MONIES ADEQUATE TO MEET THE OBLIGATIONS. THE COMMISSION
14 SHALL NOT PLEDGE THE CREDIT OF ANY MEMBER STATE, EXCEPT BY AND WITH THE
15 AUTHORITY OF THE MEMBER STATE.

16 5. THE COMMISSION SHALL KEEP ACCURATE ACCOUNTS OF ALL RECEIPTS AND
17 DISBURSEMENTS. THE RECEIPTS AND DISBURSEMENTS OF THE COMMISSION ARE
18 SUBJECT TO THE AUDIT AND ACCOUNTING PROCEDURES ESTABLISHED UNDER ITS
19 BYLAWS. HOWEVER, ALL RECEIPTS AND DISBURSEMENTS OF MONIES HANDLED BY THE
20 COMMISSION SHALL BE AUDITED YEARLY BY A CERTIFIED OR LICENSED PUBLIC
21 ACCOUNTANT, AND THE REPORT OF THE AUDIT SHALL BE INCLUDED IN AND BECOME
22 PART OF THE ANNUAL REPORT OF THE COMMISSION.

23 F. QUALIFIED IMMUNITY, DEFENSE AND INDEMNIFICATION ARE AS FOLLOWS:

24 1. THE MEMBERS, OFFICERS, EXECUTIVE DIRECTOR, EMPLOYEES AND
25 REPRESENTATIVES OF THE COMMISSION ARE IMMUNE FROM SUIT AND LIABILITY,
26 EITHER PERSONALLY OR IN THEIR OFFICIAL CAPACITY, FOR ANY CLAIM FOR DAMAGE
27 TO OR LOSS OF PROPERTY OR PERSONAL INJURY OR OTHER CIVIL LIABILITY CAUSED
28 BY OR ARISING OUT OF ANY ACTUAL OR ALLEGED ACT, ERROR OR OMISSION THAT
29 OCCURRED, OR THAT THE PERSON AGAINST WHOM THE CLAIM IS MADE HAD A
30 REASONABLE BASIS FOR BELIEVING OCCURRED WITHIN THE SCOPE OF COMMISSION
31 EMPLOYMENT, DUTIES OR RESPONSIBILITIES, PROVIDED THAT THIS PARAGRAPH DOES
32 NOT PROTECT ANY SUCH PERSON FROM SUIT OR LIABILITY, OR BOTH, FOR ANY
33 DAMAGE, LOSS, INJURY OR LIABILITY CAUSED BY THE INTENTIONAL OR WILFUL OR
34 WANTON MISCONDUCT OF THAT PERSON.

35 2. THE COMMISSION SHALL DEFEND ANY MEMBER, OFFICER, EXECUTIVE
36 DIRECTOR, EMPLOYEE OR REPRESENTATIVE OF THE COMMISSION IN ANY CIVIL ACTION
37 SEEKING TO IMPOSE LIABILITY ARISING OUT OF ANY ACTUAL OR ALLEGED ACT,
38 ERROR OR OMISSION THAT OCCURRED WITHIN THE SCOPE OF COMMISSION EMPLOYMENT,
39 DUTIES OR RESPONSIBILITIES, OR THAT THE PERSON AGAINST WHOM THE CLAIM IS
40 MADE HAD A REASONABLE BASIS FOR BELIEVING OCCURRED WITHIN THE SCOPE OF
41 COMMISSION EMPLOYMENT, DUTIES OR RESPONSIBILITIES, PROVIDED THAT THIS
42 PARAGRAPH DOES NOT PROHIBIT THAT PERSON FROM RETAINING THE PERSON'S OWN
43 COUNSEL, AND PROVIDED FURTHER THAT THE ACTUAL OR ALLEGED ACT, ERROR OR
44 OMISSION DID NOT RESULT FROM THAT PERSON'S INTENTIONAL OR WILFUL OR WANTON
45 MISCONDUCT.

46 3. THE COMMISSION SHALL INDEMNIFY AND HOLD HARMLESS ANY MEMBER,
47 OFFICER, EXECUTIVE DIRECTOR, EMPLOYEE OR REPRESENTATIVE OF THE COMMISSION

1 FOR THE AMOUNT OF ANY SETTLEMENT OR JUDGMENT OBTAINED AGAINST THAT PERSON
2 ARISING OUT OF ANY ACTUAL OR ALLEGED ACT, ERROR OR OMISSION THAT OCCURRED
3 WITHIN THE SCOPE OF COMMISSION EMPLOYMENT, DUTIES OR RESPONSIBILITIES, OR
4 THAT SUCH PERSON HAD A REASONABLE BASIS FOR BELIEVING OCCURRED WITHIN THE
5 SCOPE OF COMMISSION EMPLOYMENT, DUTIES OR RESPONSIBILITIES, PROVIDED THAT
6 THE ACTUAL OR ALLEGED ACT, ERROR OR OMISSION DID NOT RESULT FROM THE
7 INTENTIONAL OR WILFUL OR WANTON MISCONDUCT OF THAT PERSON.

8 SECTION 11. COORDINATED DATABASE

9 A. THE COMMISSION SHALL PROVIDE FOR THE DEVELOPMENT AND MAINTENANCE
10 OF A COORDINATED DATABASE AND REPORTING SYSTEM CONTAINING LICENSURE,
11 ADVERSE ACTION AND SIGNIFICANT INVESTIGATORY INFORMATION ON ALL LICENSED
12 INDIVIDUALS IN MEMBER STATES.

13 B. NOTWITHSTANDING ANY OTHER PROVISION OF STATE LAW TO THE
14 CONTRARY, A MEMBER STATE SHALL SUBMIT A UNIFORM DATA SET TO THE
15 COORDINATED DATABASE ON ALL INDIVIDUALS TO WHOM THIS COMPACT APPLIES AS
16 REQUIRED BY THE RULES OF THE COMMISSION, INCLUDING:

- 17 1. IDENTIFYING INFORMATION.
- 18 2. LICENSURE DATA.
- 19 3. SIGNIFICANT INVESTIGATORY INFORMATION.
- 20 4. ADVERSE ACTIONS AGAINST A LICENSE.
- 21 5. AN INDICATOR THAT A PRIVILEGE TO PRACTICE IS RESTRICTED,
22 SUSPENDED OR REVOKED.
- 23 6. NONCONFIDENTIAL INFORMATION RELATED TO ALTERNATIVE PROGRAM
24 PARTICIPATION.
- 25 7. ANY DENIAL OF AN APPLICATION FOR LICENSURE AND THE REASON OR
26 REASONS FOR SUCH DENIAL.
- 27 8. OTHER INFORMATION THAT MAY FACILITATE THE ADMINISTRATION OF THIS
28 COMPACT, AS DETERMINED BY THE RULES OF THE COMMISSION.

29 C. THE COORDINATED DATABASE ADMINISTRATOR SHALL PROMPTLY NOTIFY ALL
30 MEMBER STATES OF ANY ADVERSE ACTION TAKEN AGAINST, OR SIGNIFICANT
31 INVESTIGATIVE INFORMATION ON, ANY INDIVIDUAL IN A MEMBER STATE.

32 D. A MEMBER STATE THAT CONTRIBUTES INFORMATION TO THE COORDINATED
33 DATABASE MAY DESIGNATE INFORMATION THAT MAY NOT BE SHARED WITH THE PUBLIC
34 WITHOUT THE EXPRESS PERMISSION OF THAT MEMBER STATE.

35 E. ANY INFORMATION SUBMITTED TO THE COORDINATED DATABASE THAT IS
36 SUBSEQUENTLY REQUIRED TO BE EXPUNGED BY THE LAWS OF THE MEMBER STATE
37 CONTRIBUTING THE INFORMATION SHALL BE REMOVED FROM THE COORDINATED
38 DATABASE.

39 SECTION 12. RULEMAKING

40 A. THE COMMISSION SHALL EXERCISE ITS RULEMAKING POWERS PURSUANT TO
41 THE CRITERIA SET FORTH IN THIS SECTION AND THE RULES ADOPTED THEREUNDER.
42 RULES AND AMENDMENTS BECOME BINDING AS OF THE DATE SPECIFIED IN EACH RULE
43 OR AMENDMENT.

44 B. IF A MAJORITY OF THE LEGISLATURES OF THE MEMBER STATES REJECTS A
45 RULE BY ENACTING A STATUTE OR RESOLUTION IN THE SAME MANNER USED TO ADOPT
46 THIS COMPACT, THAT RULE SHALL HAVE NO FURTHER FORCE AND EFFECT IN ANY
47 MEMBER STATE.

1 C. RULES OR AMENDMENTS TO THE RULES SHALL BE ADOPTED AT A REGULAR
2 OR SPECIAL MEETING OF THE COMMISSION.

3 D. BEFORE THE COMMISSION PROMULGATES AND ADOPTS A FINAL RULE OR
4 RULES, AND AT LEAST SIXTY DAYS BEFORE THE MEETING AT WHICH THE RULE OR
5 RULES WILL BE CONSIDERED AND VOTED ON, THE COMMISSION SHALL FILE A NOTICE
6 OF PROPOSED RULEMAKING:

7 1. ON THE WEBSITE OF THE COMMISSION.

8 2. ON THE WEBSITE OF EACH MEMBER STATE EMS AUTHORITY OR IN THE
9 PUBLICATION IN WHICH EACH STATE WOULD OTHERWISE PUBLISH PROPOSED RULES.

10 E. THE NOTICE OF PROPOSED RULEMAKING SHALL INCLUDE ALL OF THE
11 FOLLOWING:

12 1. THE PROPOSED TIME, DATE AND LOCATION OF THE MEETING IN WHICH THE
13 RULE OR RULES WILL BE CONSIDERED AND VOTED ON.

14 2. THE TEXT OF THE PROPOSED RULE OR RULES OR AMENDMENT AND THE
15 REASON FOR THE PROPOSED RULE OR RULES.

16 3. A REQUEST FOR COMMENTS ON THE PROPOSED RULE OR RULES FROM ANY
17 INTERESTED PERSON.

18 4. THE MANNER IN WHICH INTERESTED PERSONS MAY SUBMIT NOTICE TO THE
19 COMMISSION OF THEIR INTENTION TO ATTEND THE PUBLIC HEARING AND ANY WRITTEN
20 COMMENTS.

21 F. BEFORE ADOPTING A PROPOSED RULE, THE COMMISSION SHALL ALLOW
22 PERSONS TO SUBMIT WRITTEN DATA, FACTS, OPINIONS AND ARGUMENTS, WHICH SHALL
23 BE MADE AVAILABLE TO THE PUBLIC.

24 G. THE COMMISSION SHALL GRANT AN OPPORTUNITY FOR A PUBLIC HEARING
25 BEFORE IT ADOPTS A RULE OR AMENDMENT IF A HEARING IS REQUESTED BY ANY OF
26 THE FOLLOWING:

27 1. AT LEAST TWENTY-FIVE PERSONS.

28 2. A GOVERNMENTAL SUBDIVISION OR AGENCY.

29 3. AN ASSOCIATION HAVING AT LEAST TWENTY-FIVE MEMBERS.

30 H. IF A HEARING IS HELD ON THE PROPOSED RULE OR AMENDMENT, THE
31 COMMISSION SHALL PUBLISH THE PLACE, TIME AND DATE OF THE SCHEDULED PUBLIC
32 HEARING, AND THE FOLLOWING APPLY:

33 1. ALL PERSONS WISHING TO BE HEARD AT THE HEARING SHALL NOTIFY THE
34 EXECUTIVE DIRECTOR OF THE COMMISSION OR OTHER DESIGNATED MEMBER IN WRITING
35 AT LEAST FIVE BUSINESS DAYS BEFORE THE SCHEDULED DATE OF THE HEARING OF
36 THEIR DESIRE TO APPEAR AND TESTIFY AT THE HEARING.

37 2. HEARINGS SHALL BE CONDUCTED IN A MANNER PROVIDING EACH PERSON
38 WHO WISHES TO COMMENT A FAIR AND REASONABLE OPPORTUNITY TO COMMENT ORALLY
39 OR IN WRITING.

40 3. A TRANSCRIPT OF THE HEARING IS NOT REQUIRED UNLESS A WRITTEN
41 REQUEST FOR A TRANSCRIPT IS MADE, IN WHICH CASE THE PERSON REQUESTING THE
42 TRANSCRIPT SHALL BEAR THE COST OF PRODUCING THE TRANSCRIPT. A RECORDING
43 MAY BE MADE IN LIEU OF A TRANSCRIPT UNDER THE SAME TERMS AND CONDITIONS AS
44 A TRANSCRIPT. THIS PARAGRAPH DOES NOT PRECLUDE THE COMMISSION FROM MAKING
45 A TRANSCRIPT OR RECORDING OF THE HEARING IF IT SO CHOOSES.

1 4. THIS SECTION DOES NOT REQUIRE A SEPARATE HEARING ON EACH RULE.
2 RULES MAY BE GROUPED FOR THE CONVENIENCE OF THE COMMISSION AT HEARINGS
3 REQUIRED BY THIS SECTION.

4 I. FOLLOWING THE SCHEDULED HEARING DATE, OR BY THE CLOSE OF
5 BUSINESS ON THE SCHEDULED HEARING DATE IF THE HEARING WAS NOT HELD, THE
6 COMMISSION SHALL CONSIDER ALL WRITTEN AND ORAL COMMENTS RECEIVED.

7 J. THE COMMISSION, BY MAJORITY VOTE OF ALL MEMBERS, SHALL TAKE
8 FINAL ACTION ON THE PROPOSED RULE AND SHALL DETERMINE THE EFFECTIVE DATE
9 OF THE RULE, IF ANY, BASED ON THE RULEMAKING RECORD AND THE FULL TEXT OF
10 THE RULE.

11 K. IF NO WRITTEN NOTICE OF INTENT TO ATTEND THE PUBLIC HEARING BY
12 INTERESTED PARTIES IS RECEIVED, THE COMMISSION MAY PROCEED WITH
13 PROMULGATING THE PROPOSED RULE WITHOUT A PUBLIC HEARING.

14 L. ON A DETERMINATION THAT AN EMERGENCY EXISTS, THE COMMISSION MAY
15 CONSIDER AND ADOPT AN EMERGENCY RULE WITHOUT PRIOR NOTICE, OPPORTUNITY FOR
16 COMMENT OR HEARING, PROVIDED THAT THE USUAL RULEMAKING PROCEDURES PROVIDED
17 IN THIS COMPACT AND IN THIS SECTION ARE RETROACTIVELY APPLIED TO THE RULE
18 AS SOON AS REASONABLY POSSIBLE, IN NO EVENT LATER THAN NINETY DAYS AFTER
19 THE EFFECTIVE DATE OF THE RULE. FOR THE PURPOSES OF THIS SUBSECTION, AN
20 EMERGENCY RULE IS ONE THAT MUST BE ADOPTED IMMEDIATELY IN ORDER TO DO ANY
21 OF THE FOLLOWING:

- 22 1. MEET AN IMMINENT THREAT TO PUBLIC HEALTH, SAFETY OR WELFARE.
- 23 2. PREVENT A LOSS OF COMMISSION OR MEMBER STATE MONIES.
- 24 3. MEET A DEADLINE FOR THE PROMULGATION OF AN ADMINISTRATIVE RULE
25 THAT IS ESTABLISHED BY FEDERAL LAW OR RULE.
- 26 4. PROTECT THE PUBLIC HEALTH AND SAFETY.

27 M. THE COMMISSION OR AN AUTHORIZED COMMITTEE OF THE COMMISSION MAY
28 DIRECT REVISIONS TO A PREVIOUSLY ADOPTED RULE OR AMENDMENT FOR PURPOSES OF
29 CORRECTING TYPOGRAPHICAL ERRORS, ERRORS IN FORMAT, ERRORS IN CONSISTENCY
30 OR GRAMMATICAL ERRORS. PUBLIC NOTICE OF ANY REVISIONS SHALL BE POSTED ON
31 THE WEBSITE OF THE COMMISSION. THE REVISION SHALL BE SUBJECT TO CHALLENGE
32 BY ANY PERSON FOR A PERIOD OF THIRTY DAYS AFTER POSTING. THE REVISION MAY
33 BE CHALLENGED ONLY ON GROUNDS THAT THE REVISION RESULTS IN A MATERIAL
34 CHANGE TO A RULE. A CHALLENGE SHALL BE MADE IN WRITING AND DELIVERED TO
35 THE EXECUTIVE DIRECTOR OF THE COMMISSION BEFORE THE END OF THE NOTICE
36 PERIOD. IF NO CHALLENGE IS MADE, THE REVISION WILL TAKE EFFECT WITHOUT
37 FURTHER ACTION. IF THE REVISION IS CHALLENGED, THE REVISION MAY NOT TAKE
38 EFFECT WITHOUT THE APPROVAL OF THE COMMISSION.

39 SECTION 13. OVERSIGHT, DISPUTE RESOLUTION AND ENFORCEMENT

40 A. OVERSIGHT OF THE COMMISSION IS AS FOLLOWS:

41 1. THE EXECUTIVE, LEGISLATIVE AND JUDICIAL BRANCHES OF STATE
42 GOVERNMENT IN EACH MEMBER STATE SHALL ENFORCE THIS COMPACT AND TAKE ALL
43 ACTIONS NECESSARY AND APPROPRIATE TO EFFECTUATE THIS COMPACT'S PURPOSES
44 AND INTENT. THIS COMPACT AND THE RULES PROMULGATED HEREUNDER SHALL HAVE
45 STANDING AS STATUTORY LAW.

46 2. ALL COURTS SHALL TAKE JUDICIAL NOTICE OF THIS COMPACT AND THE
47 RULES IN ANY JUDICIAL OR ADMINISTRATIVE PROCEEDING IN A MEMBER STATE

1 PERTAINING TO THE SUBJECT MATTER OF THIS COMPACT, WHICH MAY AFFECT THE
2 POWERS, RESPONSIBILITIES OR ACTIONS OF THE COMMISSION.

3 3. THE COMMISSION IS ENTITLED TO RECEIVE SERVICE OF PROCESS IN ANY
4 SUCH PROCEEDING AND SHALL HAVE STANDING TO INTERVENE IN SUCH A PROCEEDING
5 FOR ALL PURPOSES. FAILURE TO PROVIDE SERVICE OF PROCESS TO THE COMMISSION
6 RENDERS A JUDGMENT OR ORDER VOID AS TO THE COMMISSION, THIS COMPACT OR
7 PROMULGATED RULES.

8 B. DEFAULT, TECHNICAL ASSISTANCE AND TERMINATION ARE AS FOLLOWS:

9 1. IF THE COMMISSION DETERMINES THAT A MEMBER STATE HAS DEFAULTED
10 IN THE PERFORMANCE OF ITS OBLIGATIONS OR RESPONSIBILITIES UNDER THIS
11 COMPACT OR THE PROMULGATED RULES, THE COMMISSION SHALL:

12 (a) PROVIDE WRITTEN NOTICE TO THE DEFAULTING STATE AND OTHER MEMBER
13 STATES OF THE NATURE OF THE DEFAULT, THE PROPOSED MEANS OF CURING THE
14 DEFAULT AND ANY OTHER ACTION TO BE TAKEN BY THE COMMISSION.

15 (b) PROVIDE REMEDIAL TRAINING AND SPECIFIC TECHNICAL ASSISTANCE
16 REGARDING THE DEFAULT.

17 2. IF A STATE IN DEFAULT FAILS TO CURE THE DEFAULT, THE DEFAULTING
18 STATE MAY BE TERMINATED FROM THIS COMPACT ON AN AFFIRMATIVE VOTE OF A
19 MAJORITY OF THE MEMBER STATES, AND ALL RIGHTS, PRIVILEGES AND BENEFITS
20 CONFERRED BY THIS COMPACT MAY BE TERMINATED ON THE EFFECTIVE DATE OF
21 TERMINATION. A CURE OF THE DEFAULT DOES NOT RELIEVE THE OFFENDING STATE
22 OF OBLIGATIONS OR LIABILITIES INCURRED DURING THE PERIOD OF DEFAULT.

23 3. TERMINATION OF MEMBERSHIP IN THIS COMPACT SHALL BE IMPOSED ONLY
24 AFTER ALL OTHER MEANS OF SECURING COMPLIANCE HAVE BEEN EXHAUSTED. NOTICE
25 OF INTENT TO SUSPEND OR TERMINATE SHALL BE GIVEN BY THE COMMISSION TO THE
26 GOVERNOR, THE MAJORITY AND MINORITY LEADERS OF THE DEFAULTING STATE'S
27 LEGISLATURE AND EACH MEMBER STATE.

28 4. A STATE THAT HAS BEEN TERMINATED IS RESPONSIBLE FOR ALL
29 ASSESSMENTS, OBLIGATIONS AND LIABILITIES INCURRED THROUGH THE EFFECTIVE
30 DATE OF TERMINATION, INCLUDING OBLIGATIONS THAT EXTEND BEYOND THE
31 EFFECTIVE DATE OF TERMINATION.

32 5. THE COMMISSION SHALL NOT BEAR ANY COSTS RELATED TO A STATE THAT
33 IS FOUND TO BE IN DEFAULT OR THAT HAS BEEN TERMINATED FROM THIS COMPACT,
34 UNLESS AGREED ON IN WRITING BETWEEN THE COMMISSION AND THE DEFAULTING
35 STATE.

36 6. THE DEFAULTING STATE MAY APPEAL THE ACTION OF THE COMMISSION BY
37 PETITIONING THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA
38 OR THE FEDERAL DISTRICT WHERE THE COMMISSION HAS ITS PRINCIPAL OFFICES.
39 THE PREVAILING MEMBER STATE SHALL BE AWARDED ALL COSTS OF SUCH LITIGATION,
40 INCLUDING REASONABLE ATTORNEY FEES.

41 C. DISPUTE RESOLUTION IS AS FOLLOWS:

42 1. ON REQUEST BY A MEMBER STATE, THE COMMISSION SHALL ATTEMPT TO
43 RESOLVE DISPUTES RELATED TO THIS COMPACT THAT ARISE AMONG MEMBER STATES
44 AND BETWEEN MEMBER AND NONMEMBER STATES.

45 2. THE COMMISSION SHALL PROMULGATE A RULE PROVIDING FOR BOTH
46 MEDIATION AND BINDING DISPUTE RESOLUTION FOR DISPUTES AS APPROPRIATE.

47 D. ENFORCEMENT IS AS FOLLOWS:

1 1. THE COMMISSION, IN THE REASONABLE EXERCISE OF ITS DISCRETION,
2 SHALL ENFORCE THE PROVISIONS AND RULES OF THIS COMPACT.

3 2. BY MAJORITY VOTE, THE COMMISSION MAY INITIATE LEGAL ACTION IN
4 THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA OR THE
5 FEDERAL DISTRICT WHERE THE COMMISSION HAS ITS PRINCIPAL OFFICES AGAINST A
6 MEMBER STATE IN DEFAULT TO ENFORCE COMPLIANCE WITH THE PROVISIONS OF THE
7 COMPACT AND ITS PROMULGATED RULES AND BYLAWS. THE RELIEF SOUGHT MAY
8 INCLUDE BOTH INJUNCTIVE RELIEF AND DAMAGES. IF JUDICIAL ENFORCEMENT IS
9 NECESSARY, THE PREVAILING MEMBER STATE SHALL BE AWARDED ALL COSTS OF SUCH
10 LITIGATION, INCLUDING REASONABLE ATTORNEY FEES.

11 3. THE REMEDIES PRESCRIBED IN THIS COMPACT SHALL NOT BE THE
12 EXCLUSIVE REMEDIES OF THE COMMISSION. THE COMMISSION MAY PURSUE ANY OTHER
13 REMEDIES AVAILABLE UNDER FEDERAL OR STATE LAW.

14 SECTION 14. DATE OF IMPLEMENTATION OF THE INTERSTATE
15 COMMISSION FOR EMS PERSONNEL PRACTICE AND ASSOCIATED
16 RULES, WITHDRAWAL AND AMENDMENT

17 A. THIS COMPACT IS EFFECTIVE ON THE DATE ON WHICH THE COMPACT
18 STATUTE IS ENACTED INTO LAW IN THE TENTH MEMBER STATE. THE PROVISIONS,
19 WHICH BECOME EFFECTIVE AT THAT TIME, SHALL BE LIMITED TO THE POWERS
20 GRANTED TO THE COMMISSION RELATING TO ASSEMBLY AND THE PROMULGATION OF
21 RULES. THEREAFTER, THE COMMISSION SHALL MEET AND EXERCISE RULEMAKING
22 POWERS NECESSARY TO IMPLEMENT AND ADMINISTER THIS COMPACT.

23 B. ANY STATE THAT JOINS THIS COMPACT AFTER THE COMMISSION'S INITIAL
24 ADOPTION OF THE RULES IS SUBJECT TO THE RULES AS THEY EXIST ON THE DATE ON
25 WHICH THIS COMPACT BECOMES LAW IN THAT STATE. ANY RULE THAT HAS BEEN
26 PREVIOUSLY ADOPTED BY THE COMMISSION HAS THE FULL FORCE AND EFFECT OF LAW
27 ON THE DAY THIS COMPACT BECOMES LAW IN THAT STATE.

28 C. ANY MEMBER STATE MAY WITHDRAW FROM THIS COMPACT BY ENACTING A
29 STATUTE REPEALING THE SAME, AND THE FOLLOWING APPLY:

30 1. A MEMBER STATE'S WITHDRAWAL DOES NOT TAKE EFFECT UNTIL SIX
31 MONTHS AFTER ENACTMENT OF THE REPEALING STATUTE.

32 2. WITHDRAWAL DOES NOT AFFECT THE CONTINUING REQUIREMENT OF THE
33 WITHDRAWING STATE'S EMS AUTHORITY TO COMPLY WITH THE INVESTIGATIVE AND
34 ADVERSE ACTION REPORTING REQUIREMENTS OF THIS ACT BEFORE THE EFFECTIVE
35 DATE OF WITHDRAWAL.

36 D. THIS COMPACT DOES NOT INVALIDATE OR PREVENT ANY EMS PERSONNEL
37 LICENSURE AGREEMENT OR OTHER COOPERATIVE ARRANGEMENT BETWEEN A MEMBER
38 STATE AND A NONMEMBER STATE THAT DOES NOT CONFLICT WITH THE PROVISIONS OF
39 THIS COMPACT.

40 E. THIS COMPACT MAY BE AMENDED BY THE MEMBER STATES. AN AMENDMENT
41 TO THIS COMPACT DOES NOT BECOME EFFECTIVE AND BINDING ON ANY MEMBER STATE
42 UNTIL IT IS ENACTED INTO THE LAWS OF ALL MEMBER STATES.

43 SECTION 15. CONSTRUCTION AND SEVERABILITY

44 THIS COMPACT SHALL BE LIBERALLY CONSTRUED SO AS TO EFFECTUATE THE
45 PURPOSES OF THIS COMPACT. IF THIS COMPACT IS HELD CONTRARY TO THE
46 CONSTITUTION OF ANY STATE MEMBER THERETO, THIS COMPACT REMAINS IN FULL

1 FORCE AND EFFECT AS TO THE REMAINING MEMBER STATES. THIS COMPACT DOES NOT
2 SUPERSEDE STATE LAW OR RULES RELATED TO LICENSURE OF EMS AGENCIES.

3 <<Sec. 5. Section 41-619.51, Arizona Revised Statutes, is amended
4 to read:

5 41-619.51. Definitions

6 In this article, unless the context otherwise requires:

7 1. "Agency" means the supreme court, the department of economic
8 security, the department of child safety, the department of education, the
9 department of health services, the department of juvenile corrections, the
10 department of emergency and military affairs, the department of public
11 safety, the department of transportation, the state real estate
12 department, the department of insurance and financial institutions, the
13 Arizona game and fish department, the Arizona department of agriculture,
14 the board of examiners of nursing care institution administrators and
15 assisted living facility managers, the state board of dental examiners,
16 the Arizona state board of pharmacy, the board of physical therapy, the
17 state board of psychologist examiners, the board of athletic training, the
18 board of occupational therapy examiners, the state board of podiatry
19 examiners, the acupuncture board of examiners, the state board of
20 technical registration, the board of massage therapy, the board of
21 behavioral health examiners or the Arizona department of housing.

22 2. "Board" means the board of fingerprinting.

23 3. "Central registry exception" means notification to the
24 department of economic security, the department of child safety or the
25 department of health services, as appropriate, pursuant to section
26 41-619.57 that the person is not disqualified because of a central
27 registry check conducted pursuant to section 8-804.

28 4. "Expedited review" means an examination, in accordance with
29 board rule, of the documents an applicant submits by the board or its
30 hearing officer without the applicant being present.

31 5. "Good cause exception" means the issuance of a fingerprint
32 clearance card to an employee pursuant to section 41-619.55.

33 6. "Person" means a person who is required to be fingerprinted
34 pursuant to this article or who is subject to a central registry check and
35 any of the following:

- 36 (a) Section 3-314.
- 37 (b) Section 8-105.
- 38 (c) Section 8-322.
- 39 (d) Section 8-463.
- 40 (e) Section 8-509.
- 41 (f) Section 8-802.
- 42 (g) Section 8-804.
- 43 (h) Section 15-183.
- 44 (i) Section 15-503.
- 45 (j) Section 15-512.
- 46 (k) Section 15-534.
- 47 (l) Section 15-763.01.

1	(m)	Section 15-782.02.
2	(n)	Section 15-1330.
3	(o)	Section 15-1881.
4	(p)	Section 17-215.
5	(q)	Section 28-3228.
6	(r)	Section 28-3413.
7	(s)	Section 32-122.02.
8	(t)	Section 32-122.05.
9	(u)	Section 32-122.06.
10	(v)	Section 32-823.
11	(w)	Section 32-1232.
12	(x)	Section 32-1276.01.
13	(y)	Section 32-1284.
14	(z)	Section 32-1297.01.
15	(aa)	Section 32-1904.
16	(bb)	Section 32-1941.
17	(cc)	Section 32-1982.
18	(dd)	Section 32-2022.
19	(ee)	Section 32-2063.
20	(ff)	Section 32-2108.01.
21	(gg)	Section 32-2123.
22	(hh)	Section 32-2371.
23	(ii)	Section 32-3271.
24	(jj)	Section 32-3430.
25	(kk)	Section 32-3620.
26	(ll)	Section 32-3668.
27	(mm)	Section 32-3669.
28	(nn)	Section 32-3922.
29	(oo)	Section 32-3924.
30	(pp)	Section 32-4128.
31	(qq)	Section 32-4222.
32	(rr)	Section 36-113.
33	(ss)	Section 36-207.
34	(tt)	Section 36-411.
35	(uu)	Section 36-425.03.
36	(vv)	Section 36-446.04.
37	(ww)	Section 36-594.01.
38	(xx)	Section 36-594.02.
39	(yy)	Section 36-766.01.
40	(zz)	Section 36-882.
41	(aaa)	Section 36-883.02.
42	(bbb)	Section 36-897.01.
43	(ccc)	Section 36-897.03.
44	(ddd)	Section 36-1940.
45	(eee)	Section 36-1940.01.
46	(fff)	Section 36-2069.
47	<u>[(ggg) SECTION 36-2202.]</u>	

1 ~~[(ggg)]~~ ~~[(hhh)]~~ Section 36-3008.
2 ~~[(hhh)]~~ ~~[(iii)]~~ Section 41-619.53.
3 ~~[(iii)]~~ ~~[(jjj)]~~ Section 41-1964.
4 ~~[(jjj)]~~ ~~[(kkk)]~~ Section 41-1967.01.
5 ~~[(kkk)]~~ ~~[(lll)]~~ Section 41-1968.
6 ~~[(lll)]~~ ~~[(mmm)]~~ Section 41-1969.
7 ~~[(mmm)]~~ ~~[(nnn)]~~ Section 41-2814.
8 ~~[(nnn)]~~ ~~[(ooo)]~~ Section 41-4025.
9 ~~[(ooo)]~~ ~~[(ppp)]~~ Section 46-141, subsection A or B.
10 ~~[(ppp)]~~ ~~[(qqq)]~~ Section 46-321.>>
11 <<Sec. 6. Section 41-1758, Arizona Revised Statutes, is amended to
12 read:
13 41-1758. Definitions
14 In this article, unless the context otherwise requires:
15 1. "Agency" means the supreme court, the department of economic
16 security, the department of child safety, the department of education, the
17 department of health services, the department of juvenile corrections, the
18 department of emergency and military affairs, the department of public
19 safety, the department of transportation, the state real estate
20 department, the department of insurance and financial institutions, the
21 board of fingerprinting, the Arizona game and fish department, the Arizona
22 department of agriculture, the board of examiners of nursing care
23 institution administrators and assisted living facility managers, the
24 state board of dental examiners, the Arizona state board of pharmacy, the
25 board of physical therapy, the state board of psychologist examiners, the
26 board of athletic training, the board of occupational therapy examiners,
27 the state board of podiatry examiners, the acupuncture board of examiners,
28 the state board of technical registration, the board of massage therapy,
29 the board of behavioral health examiners or the Arizona department of
30 housing.
31 2. "Division" means the fingerprinting division in the department
32 of public safety.
33 3. "Electronic or internet-based fingerprinting services" means a
34 secure system for digitizing applicant fingerprints and transmitting the
35 applicant data and fingerprints of a person or entity submitting
36 fingerprints to the department of public safety for any authorized purpose
37 under this title. For the purposes of this paragraph, "secure system"
38 means a system that complies with the information technology security
39 policy approved by the department of public safety.
40 4. "Good cause exception" means the issuance of a fingerprint
41 clearance card to an applicant pursuant to section 41-619.55.
42 5. "Person" means a person who is required to be fingerprinted
43 pursuant to any of the following:
44 (a) Section 3-314.
45 (b) Section 8-105.
46 (c) Section 8-322.
47 (d) Section 8-463.

1	(e)	Section 8-509.
2	(f)	Section 8-802.
3	(g)	Section 15-183.
4	(h)	Section 15-503.
5	(i)	Section 15-512.
6	(j)	Section 15-534.
7	(k)	Section 15-763.01.
8	(l)	Section 15-782.02.
9	(m)	Section 15-1330.
10	(n)	Section 15-1881.
11	(o)	Section 17-215.
12	(p)	Section 28-3228.
13	(q)	Section 28-3413.
14	(r)	Section 32-122.02.
15	(s)	Section 32-122.05.
16	(t)	Section 32-122.06.
17	(u)	Section 32-823.
18	(v)	Section 32-1232.
19	(w)	Section 32-1276.01.
20	(x)	Section 32-1284.
21	(y)	Section 32-1297.01.
22	(z)	Section 32-1904.
23	(aa)	Section 32-1941.
24	(bb)	Section 32-1982.
25	(cc)	Section 32-2022.
26	(dd)	Section 32-2063.
27	(ee)	Section 32-2108.01.
28	(ff)	Section 32-2123.
29	(gg)	Section 32-2371.
30	(hh)	Section 32-3271.
31	(ii)	Section 32-3430.
32	(jj)	Section 32-3620.
33	(kk)	Section 32-3668.
34	(ll)	Section 32-3669.
35	(mm)	Section 32-3922.
36	(nn)	Section 32-3924.
37	(oo)	Section 32-4128.
38	(pp)	Section 32-4222.
39	(qq)	Section 36-113.
40	(rr)	Section 36-207.
41	(ss)	Section 36-411.
42	(tt)	Section 36-425.03.
43	(uu)	Section 36-446.04.
44	(vv)	Section 36-594.01.
45	(ww)	Section 36-594.02.
46	(xx)	Section 36-766.01.
47	(yy)	Section 36-882.

1 (zz) Section 36-883.02.
2 (aaa) Section 36-897.01.
3 (bbb) Section 36-897.03.
4 (ccc) Section 36-1940.
5 (ddd) Section 36-1940.01.
6 (eee) Section 36-2069.
7 [(fff)] SECTION 36-2202.]
8 [(fff)] [(ggg)] Section 36-3008.
9 [(ggg)] [(hhh)] Section 41-619.52.
10 [(hhh)] [(iii)] Section 41-619.53.
11 [(iii)] [(jjj)] Section 41-1964.
12 [(jjj)] [(kkk)] Section 41-1967.01.
13 [(kkk)] [(lll)] Section 41-1968.
14 [(lll)] [(mmm)] Section 41-1969.
15 [(mmm)] [(nnn)] Section 41-2814.
16 [(nnn)] [(ooo)] Section 41-4025.
17 [(ooo)] [(ppp)] Section 46-141, subsection A or B.
18 [(ppp)] [(qqq)] Section 46-321.
19 6. "Rap back services" has the same meaning prescribed in section
20 41-1750.
21 7. "Vulnerable adult" has the same meaning prescribed in section
22 13-3623.>>
23 <<Sec. 7. Section 41-1758.01, Arizona Revised Statutes, is amended
24 to read:
25 41-1758.01. Fingerprinting division: powers and duties
26 A. The fingerprinting division is established in the department of
27 public safety and shall:
28 1. Conduct fingerprint background checks for persons and applicants
29 who are seeking licenses from state agencies, employment with licensees,
30 contract providers and state agencies or employment or educational
31 opportunities with agencies that require fingerprint background checks
32 pursuant to sections 3-314, 8-105, 8-322, 8-463, 8-509, 8-802, 15-183,
33 15-503, 15-512, 15-534, 15-763.01, 15-782.02, 15-1330, 15-1881, 17-215,
34 28-3228, 28-3413, 32-122.02, 32-122.05, 32-122.06, 32-823, 32-1232,
35 32-1276.01, 32-1284, 32-1297.01, 32-1904, 32-1941, 32-1982, 32-2022,
36 32-2063, 32-2108.01, 32-2123, 32-2371, 32-3271, 32-3430, 32-3620, 32-3668,
37 32-3669, 32-3922, 32-3924, 32-4128, 32-4222, 36-113, 36-207, 36-411,
38 36-425.03, 36-446.04, 36-594.01, 36-594.02, 36-766.01, 36-882, 36-883.02,
39 36-897.01, 36-897.03, 36-1940, 36-1940.01, 36-2069, [36-2202.] 36-3008,
40 41-619.52, 41-619.53, 41-1964, 41-1967.01, 41-1968, 41-1969, 41-2814 and
41 41-4025, section 46-141, subsection A or B and section 46-321.
42 2. Issue fingerprint clearance cards. On issuance, a fingerprint
43 clearance card becomes the personal property of the cardholder and the
44 cardholder shall retain possession of the fingerprint clearance card.
45 3. On submission of an application for a fingerprint clearance
46 card, collect the fees established by the board of fingerprinting pursuant

1 to section 41-619.53 and deposit, pursuant to sections 35-146 and 35-147,
2 the monies collected in the board of fingerprinting fund.

3 4. Inform in writing each person who submits fingerprints for a
4 fingerprint background check of the right to petition the board of
5 fingerprinting for a good cause exception pursuant to section 41-1758.03,
6 41-1758.04 or 41-1758.07.

7 5. If after conducting a state and federal criminal history records
8 check the division determines that it is not authorized to issue a
9 fingerprint clearance card to a person, inform the person in writing that
10 the division is not authorized to issue a fingerprint clearance card. The
11 notice shall include the criminal history information on which the denial
12 was based. This criminal history information is subject to dissemination
13 restrictions pursuant to section 41-1750 and Public Law 92-544.

14 6. Notify the person in writing if the division suspends, revokes
15 or places a driving restriction notation on a fingerprint clearance card
16 pursuant to section 41-1758.04. The notice shall include the criminal
17 history information on which the suspension, revocation or placement of
18 the driving restriction notation was based. This criminal history
19 information is subject to dissemination restrictions pursuant to section
20 41-1750 and Public Law 92-544.

21 7. Administer and enforce this article.

22 B. The fingerprinting division may contract for electronic or
23 internet-based fingerprinting services through an entity or entities for
24 the acquisition and transmission of applicant fingerprint and data
25 submissions to the department, including identity verified fingerprints
26 pursuant to section 15-106. The entity or entities contracted by the
27 department of public safety may charge the applicant a fee for services
28 provided pursuant to this article. The entity or entities contracted by
29 the department of public safety shall comply with:

30 1. All information privacy and security measures and submission
31 standards established by the department of public safety.

32 2. The information technology security policy approved by the
33 department of public safety.>>

34 Enroll and engross to conform

35 Amend title to conform

And, as so amended, it do pass

SELINA BLISS
CHAIRMAN

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